

25LBCV00254 25LBCV00254

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-28

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Case Number: 25LBCV00254 Hearing Date: July 28, 2026 Dept: S27

1. Facts

The facts relating to this motion

are not disputed by the parties.

Plaintiff's deposition was scheduled for 4/15/26 at 10 a.m. On 4/10/26, Plaintiff's attorney wrote to Defense Counsel and asked to change the deposition time to 2 p.m. Defense Counsel did not receive the request from its e-service email until 4/17/26, and therefore appeared at 10 a.m. for the deposition; Plaintiff did not appear, and Defendant took a notice of non-appearance.

2. Sanctions

Defendant ultimately took

Plaintiff's deposition on 7/15/26 and the motion is substantively moot. The only remaining issue is whether sanctions should be imposed. CCP §2025.450(g)(1)

requires imposition of sanctions unless the Court finds good cause or substantial justification for the failure to appear. The Court finds good cause and substantial justification here; Plaintiff was entitled to rely on Defendant's email service to provide the emails to Defense Counsel, and it was not Plaintiff's fault that Defense Counsel did not receive the email.

While Plaintiff should have followed up in light of the lack of response, the Court finds Plaintiff's conduct was reasonable under the circumstances. The Court also notes that

Defense Counsel's declaration lacks specificity regarding compliance with §2025.450(b)(2), which requires the party seeking to conduct the deposition to contact the opposing party to inquire about the nonappearance prior to filing a motion to compel. Defense Counsel declares Plaintiff has not responded to meet and confer efforts, but provides

no details about those efforts; Defense Counsel does not specifically declare that he reached out to Plaintiff to inquire about the nonappearance once he received the subject email.

3. Conclusion

The motion to compel is denied as moot, and the attendant request for sanctions is denied due to Plaintiff's showing of good cause or substantial justification for the nonappearance and also due to the deficient meet and confer declaration.

Defendant is ordered to give notice.